

HOUSE No. 3183

The Commonwealth of Massachusetts

PRESENTED BY:

John J. Marsi and Donald R. Berthiaume, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act allow all towns and cities to use Tax Increment Financing (TIF) as an incentive for housing (residential rehab or commercial conversion).

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>1/14/2025</i>
<i>Donald R. Berthiaume, Jr.</i>	<i>5th Worcester</i>	<i>3/20/2025</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>2/11/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>2/11/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>2/11/2025</i>

HOUSE No. 3183

By Representatives Marsi of Dudley and Berthiaume of Spencer, a petition (accompanied by bill, House, No. 3183) of John J. Marsi, Marcus S. Vaughn and others relative to tax increment financing (TIF). Revenue.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act allow all towns and cities to use Tax Increment Financing (TIF) as an incentive for housing (residential rehab or commercial conversion).

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 3E of chapter 23A of the General Laws, as appearing in the 2022
2 Official Editions, is hereby amended by striking out subsection (b) and replacing it with the
3 following:-

4 (b) Tax increment financing may be offered by a municipality, in accordance with section
5 59 of chapter 40 of the General Laws, to the controlling business of a certified project, or to any
6 person or entity undertaking a real estate project or to any person or entity expanding a facility in
7 an area designated by the EACC as a TIF-eligible area. The EACC may designate an area as a
8 TIF-eligible area if it finds, upon petition from the municipality, that there is a strong likelihood
9 that any of the following will occur within the area in question within a specific and reasonably
10 proximate period of time: (i) a significant influx or growth in business activity; (ii) the creation
11 of a significant number of new jobs and not merely a replacement or relocation of current jobs
12 within the commonwealth; (iii) a private project or investment that will contribute significantly

13 to the resiliency of the local economy; or (iv) the conversion and rehabilitation of neglected,
14 dilapidated, or underutilized building structures into useable dwelling units.

15 If a municipality offers tax increment financing to the owner of a certified project, the
16 municipal project endorsement for the certified project shall include a fully executed copy of the
17 tax increment financing agreement adopted pursuant to said section 59 of chapter 40. Any tax
18 increment financing agreement shall be approved by the EACC before it shall be valid and
19 enforceable. The EACC may approve a tax increment financing agreement pursuant to
20 regulations adopted by the EACC. Any approval shall include a finding, reflected in the EACC's
21 minutes, that the tax increment financing agreement complies with said section 59 of chapter 40
22 and will further the public purpose of encouraging increased industrial capacity, commercial
23 activity, and housing supply in the commonwealth.